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INTERPRETATION OF CHAPTER 6 OF THE KENYAN CONSTITUTION: COURTS' ADJUDICATION MIRED IN A TROUGH OF DISILLUSIONMENT

I. INTRODUCTION

In the promulgation of the Constitution of Kenya (2010) (hereafter referred to as 'the Constitution'), Kenyans agreed to end impunity in all spheres of society. The history of Kenya was bedeviled by decades of an adverse system used to undermine rule of law, good governance, and the respect for the Kenyan people. The late Tanzanian President, Mwalimu Julius Nyerere, is said to have described Kenya as a 'man eat man society'.[1]

The repealed Constitution had no provisions made for leadership and integrity. It only prescribed that every public office had to function under their own code of regulations that outlined duty and the maintenance of office in a manner that spelt integrity.[2] Presidential control over institutions was also exercised through unregulated powers and appointments and dismissals were made at his will. As a result, public servants' accountability was to the president at the expense of the public.[3]

Consequently, integrity of leaders was at the very heart of the quest for a new constitutional dispensation.[4] Chapter 6, alongside other provisions is the nerve center of transformation centered on correcting injustices the people suffered under the repealed constitution.[5] The people's interests were echoed in the section 'what people said' in Chapter 14 on the report by the Constitution of Kenya Review Commission (CKRC), where it stated that "*The people want their*

[1] Lumumba P, 'The Trial of Integrity in Kenya' Katiba Institute, 29 November 2014 http://katibainstitute.org/the-trial-of-integrity-in-kenya/ on 7 January 2021.
[2] Constitution of Kenya Review Commission, Final draft, 2005, 218.
[3] Towards Hazy Horizons, *Implementation of Chapter Six of the Constitution of Kenya 2010*, 2018, 2.
[4] Lumumba P, 'The Trial of Integrity in Kenya' Katiba Institute, 29 November 2014 http://katibainstitute.org/the-trial-of-integrity-in-kenya/ on 7 January 2021.
[5] Okoth J, 'The leadership and integrity chapter of the 2010 constitution of Kenya: the elusive threshold' in Mbondenyi M, Asaala E, Kabau T and Waris A (eds) *Human rights and democratic governance in Kenya: A post-2007 appraisal*, Pretoria University Law Press (PULP), Pretoria, 2015, 275. See also, Ngumbi E, 'How Supreme Court denied to rule on integrity for holding office' The star, 14 June 2020 https://www.the-star.co.ke/siasa/2020-06-14-how-supreme-court-denied-to-rule-on-integrity-for-holding-office/ on 3 January 2021.

leaders to be accountable for their actions" and vied for transparency of the appointment process for Public officers.[6]

In reference to its inclusion in the 2010 constitution, Yash Pal Ghai has described it as 'the finest anti-corruption and public service Chapter'.[7] However, a well-designed Chapter remains just that if its actors are dormant. Okoth Ogendo asserts that constitutions have long existed without constitutionalism.[8] Therefore, to cultivate the culture of constitutionalism, there is need for a progressive jurisprudence from the judiciary.[9]

Karl E Klare has argued, in reference to South Africa's 1996 constitution, that adjudication is supposed to be the most reflective, self-conscious, grounded in reasoned argument and justification, and the most constrained and structured by text, rule, and principle.[10] However, courts implementation of Chapter 6 shows otherwise.

The balancing of competing obligations for courts is one of the prevailing reasons why the Chapter remains impounded by justifications that water the provisions down. With the Constitution having marked 10 years, implementation of Chapter 6 is worrying. Decided cases suggest that courts are reluctant to pass judgement on matters concerning the integrity of people seeking public offices.[11] In a recent case, Judge Lenaola has stated that "*…the realization of the fit and proper test under Chapter 6 raises a variety of implementation challenges unbeknown to traditional integrity and leadership criteria previously in force."*[12] The Transparency International

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[6] Constitution of Kenya Review Commission, Final draft, 2005, 219.
[7] Ghai Y, 'Prof. Yash Pal Ghai's Submission to the Building Bridges Initiative Task Force Committee' Katiba Institute, 10 May 2019 https://katibainstitute.org/prof-yash-ghais-submissions-to-the-building-bridges-initiative/ on 10 January 2021.
[8] Okoth-Ogendo H.W.O, 'Constitutions Without Constitutionalism: Reflections on an African Political Paradox' in Greenberg D, Katz S, Oliviero M and Steven W (eds) Constitutionalism and Democracy: Transitions in the Contemporary world, Oxford University Press, Oxford, 1993, 65-82. See also, Albert R, 'The Cult of Constitutionalism' 39 Florida State University Law Review 2, 2012, 382.
[9] Mutunga W, 'Kenya: a new constitution: Willy Mutunga on the culmination of almost five decades of Struggles' Pluto Journals, 2013, 21 https://www.jstor.org/stable/10.13169/socialistlawyer.65.0020 on 14 January 2021.
[10] Klare K, 'Legal Culture and Transformative Constitutionalism' *South African Journal on Human Rights*, 1998, 147 https://doi.org/10.1080/02587203.1998.11834974 on 14 December 2020.
[11] Otieno G, 'Integrity in Leadership? An assessment of Kenya's performance in enforcing constitutional values' Africa Centre for Open Governance, 2015, 7 https://africog.org/wp-content/uploads/2015/10/Integrity-in-Leadership-An-assessment-of-Kenya%E2%80%99s-performance-in-enforcing-constitutional-values1.pdf on 3 January 2021.
[12] *Kenya National Commission on Human Rights v Attorney General; Independent Electoral & Boundaries Commission & 16 others (Interested Parties)* (2020) eKLR.

Kenya (TI-Kenya) article on the shortcomings of the Chapter, it states that there is ambiguity expressed in judicial interpretations on enforcement of Chapter 6 that is setting back the effective enforcement of leadership and integrity provisions. It re-asserts the need for urgency by courts to dispense the clear guidance on application and enforcement of the Chapter.[13] Additionally, Africa Centre for Open Governance (AfriCOG) assessment of the integrity provisions report adopts the same stance by recommending for the judiciary to conduct an internal review of its position on Chapter 6.[14]

The purpose of this paper is to investigate courts' irrational and weak justifications on matters concerning Chapter 6 and present the ways in which courts have justified their reasons for holding back. Therefore, the critical question posed in this critique is how judicial adjudication is undermining Chapter 6 of the Constitution and its fidelity towards a transformed society.

II. ANALYSIS OF COURTS' JUSTIFICATIONS AND THEIR COMPLEXITIES

The culture of justifications given by courts is inheriting to their role. Its analysis not only describes and classifies but also attempts to reveal why one set of justifications were chosen over others and the connection they bear to the values and principles of the Constitution.[15] Therefore, 'there is no decision without justification; the justification belongs to the decision'.[16] Lon L. Fuller and Kenneth I. Winston argue that "*adjudication is a form of social ordering institutionally committed to 'rational' decision*."[17] They believe that, compared to other forms of social ordering, adjudication carries the heaviest burden of rationality.[18] On that account, giving an extensive explanation is not adequate to strengthen a judgement; it must also be grounded on rational decisions.

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[13] Gitonga T, 'Ten years of implementing chapter six of the Constitution of Kenya' Transparency International Kenya, 2020 https://tikenya.org/ten-years-of-implementing-chapter-six-of-the-constitution-of-kenya/ on 7 February 2021.
[14] Otieno G, 'Integrity in Leadership? An assessment of Kenya's performance in enforcing constitutional values,' 36.
[15] Troper M, 'The Logic of justification of Judicial Review' 1 *Oxford University Press and New York University Scholl of Law* 1, 2003, 99-100.
[16] Klink B, 'Adjudication and Justification. To What Extent Should the Excluded Be Included in the Judge's Decision?' ResearchGate, 2015, 4.
[17] Fuller L and Winston K, 'The Forms and Limits of Adjudication' 92 *Harvard Law Review* 2, 1978, 380.
[18] Klink B, 'Adjudication and Justification. To What Extent Should the Excluded Be Included in the Judge's Decision?' ResearchGate, 2015, 1. See also, Fuller L and Winston K, 'The Forms and Limits of Adjudication' 366-367.

A closer analysis of Courts' justifications in their rulings on Chapter 6 of the Constitution avails irrational decisions fostering inconsistency, restrictiveness, and incoherency. There is a lack of efficacy and legal closure to the implementation of the Leadership and Integrity provisional clauses. Therefore, some of the prevalent decisions (with their justifications) and interpretation of the Constitution require scrupulous attention to detail.

A. The distinction made between appointive and elective positions.

Elected and Appointed officers exercise their duties for, as Adam Smith termed it, '*enlightened self-interest*' purposes; interests of the society.[19] However, their means of appointment are different. The Constitution elects an Independent and Electoral Boundaries Commission (IEBC) under Article 88(4) which is responsible for settling electoral disputes and regulating the process that parties use to nominate candidates. Their selection is through elections as stated in Article 73(2). Whereas the appointment of Public officers is governed by enacted Acts of Parliament in accordance with Article 79 which are mandated with ensuring Public officers comply with Chapter 6's provisions. These differences have, in turn, caused friction in courts' adjudication.

In the case of *Luka Angaiya Lubwayo & another v Gerald Otieno Kajwang & another,* the High Court stated that the only criteria set out for State officers in Article 73(2) of the Constitution is 'the electors who determine those to elect based on their assessment of the candidates' honesty, rectitude, uprightness, and scrupulousness'.[20] In *International Centre for Policy and Conflict,* the court adapted the same approach by stating that political rights must prevail over Chapter 6 of the Constitution.[21] That the people's will to choose their leader is a democratic right that cannot be infringed on by courts.

These justifications muddle other provisional clauses in the Constitution by implying that Article 73(2) protects politicians from scrutiny by courts in their lack of integrity. That free and fair elections are effective in deterring nepotism, corrupt practices, improper motives, and

[19] https://publicpolicy.unc.edu/wp-content/uploads/sites/107/2015/07/Lambeth-Lecture-1-Joel-Fleishman-2007.pdf on 30 January 2021.
[20] *Luka Angaiya Lubwayo & another v Gerald Otieno Kajwang & another* (2013).
[21] Okoth, 'The leadership and integrity chapter of the 2010 constitution of Kenya: the elusive threshold,' 291-292.

impartiality. David Landau argues that the case for deference by judiciaries to allow constitutionalism to flourish within the political system depends on, "a widespread commitment among the nation's citizens to constitutional values."[22] Therefore, court's ruling is justified if the Kenyan people uphold the constitutional values while electing a candidate. Evidently, this is not the case. Kenyan voters, more often than not, limit their choices within the spectrum of tribalism, kleptocracy and personality cultism.[23] There is a lack of concentration on the candidates' credentials and focus is rendered on their ethnicity and public personality. This is a trend that plagues Kenya's political arena. Thus, the people cannot solely be relied on to scrutinize political actors on personal integrity, competence, and suitability.

In the Federalist paper 50, James Madison discusses the dangers of periodical or regular appeals to the people as a means of "preventing and correcting infractions of the Constitution." He rejects the view by asserting that frequent appeals to the people to check on the behaviour of the government officials will be marred by impartiality and passion in lieu of reason.[24] Consequently, civic responsibility cannot be the only threshold set for State officers. Nevertheless, courts' decisions suggest otherwise.

Moreover, if the Constitution mandates State officers to vet other Public officials, how can they subject them to a test they themselves are not subjected to?[25] The threshold politicians are subjected to is already inadequate to filter out those who fall below the constitutional requirements, making their appointments questionable. Therefore, it is implausible that State officers' integrity threshold was intended to be lower than the Public officers' one.

It is a cardinal rule that interpretation of the Constitution by courts should advance its values and principles. Articles 10 and 259 read with Article 260 would have given courts a clearer

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[22] Landau D, 'A Dynamic Theory of Judicial Role' 55 Boston College Law Review 5, 2014, 1532. See also, Tushnet M, 'Relation Between Political Constitutionalism and Weak-Form Judicial Review' 14 *German Law Journal* 12, 2013, 2255–56.

[23] Rowa Y, 'Kenyan voters need to resist the allure of voting for the usual suspects' The conversation, 26 April 2017 https://theconversation.com/kenyan-voters-need-to-resist-the-allure-of-voting-for-the-usual-suspects-75878 on 28 January 2021.

[24] https://avalon.law.yale.edu/18th_century/fed50.asp 5 January 2021. See also, Cooke J, ed. '*The Federalist*,' 1ed, Wesleyan University Press, Middletown, 1961,344, 346.

[25] Okoth, 'The leadership and integrity chapter of the 2010 constitution of Kenya: the elusive threshold,' 292.

understanding of what Article 73(2) envisions for Public and State officers, thus altering their constricted reading of the provision.

Ostensibly, intending to uphold the people's will in Article 73, courts endanger other provisions. Carl Schmitt asserts that judges' decisions should aim to provide 'legal clarity'; however, in the prevailing matter this is far from the case.[26]

B. The integrity threshold

Throughout courts' adjudication, there seems to be a lack of consensus on what constitutes a lack of integrity. In some cases, courts have ruled that where one has not been convicted of a crime and sentenced to at least six months or has been acquitted, they satisfy the integrity threshold. Moreover, the standard of proof of lack of integrity should be alike to that of criminal cases. Other courts are of the view that it is a matter of 'unresolved questions' and the burden of proof is that on balance of probability. Thus, the critical question to be asked is what the proper standard is that Courts should adapt to reflect what Chapter 6 envisioned.

The first understanding of the 'proper' integrity threshold is demonstrated by the High Court in *Luka Angaiya Lubwayo & another v Gerald Otieno Kajwang & another.* The evidence brought forth showed that as an advocate, he had been subjected to various disciplinary proceedings by the disciplinary committee enacted by the Advocates Act and was found guilty of professional misconducts on 9 occasions, leading to his ouster from the Roll of Advocates from 1999 to 2006 and his reinstatement in 2012 with conditions. In determining the matter, Judge Lenaola held that the respondent's reinstatement into the Roll of Advocates is a clear indication that he meets the constitutional threshold found in Chapter 6.[27] The court's justification relied on Article 99(1) read with 99(2) (g) of the Constitution which declares that a person is eligible as a member of Parliament unless he is disqualified or has been sentenced to imprisonment of at least six

[26] Klink B, 'Adjudication and Justification. To What Extent Should the Excluded Be Included in the Judge's Decision?' ResearchGate, 2015, 10.
[27] *Luka Angaiya Lubwayo & another v Gerald Otieno Kajwang & another* (2013) eKLR.

months. Hence, a conviction does not amount to a sentence and cannot bar one from running for a State or Public office.

International Centre for Policy & Conflict & 5 others v Attorney General & 4 others adopted the same view when it cleared the first respondent to run for member of Parliament for South Mugirango Constituency, after he was acquitted of criminal charges in relation to the alleged misappropriated funds of the Constituency Development Fund.[28] Even though the Court of Appeal in Mumo Matemu noted that Chapter 6 of the Constitution requires "an intensely fact-based enquiry", it concluded that the evidence against the Appellant was insufficient and vague.[29] Hence, obscuring the test even further. This was a decision that proved ineffective when Mumo Matemu resigned from his post two years later, following suspension and investigations by a Commission of Inquiry for the same reasons that prompted the case above.[30]

The second, perhaps rational, understanding is in the first hearing of the Mumo Matemu case. The High Court ruled that for the integrity test, the Constitution does not require that the behaviour, attribute or conduct of the person in question must rise to the threshold of criminality. "*It follows that the fact that a person has not been convicted of a criminal offence is not dispositive of the inquiry whether they lack integrity or not*".[31] Hence, where one faces unresolved questions, the test should consider the significant blows the institution may face with the appointment.

This stratagem emerged from the Supreme Court of India decision in the case of *The Centre for PIL and Another vs The Union of India* while determining if Shri P.J. Thomas appointment as the commissioner of the Central Vigilance Commission (CVC) (set up as an integrity institution), met the integrity threshold. The Court emphasized the marriage of personal integrity and institutional integrity.[32] The substance of the test is that institutional competence and its functioning are held to a higher standard when establishing an integrity threshold. Consequently,

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[28] Okoth, 'The leadership and integrity chapter of the 2010 constitution of Kenya: the elusive threshold,' 290.
[29] *Mumo Matemu v Trusted Society of Human Rights Alliance & 5 others* (2013) eKLR.
[30] Goin J, 'Total Wipe Out As Matemu Resigns From EACC' Capital NEWS, 12 May 2015 https://www.capitalfm.co.ke/news/2015/05/total-wipe-out-as-matemu-resigns-from-eacc/ on 10 January 2021.
[31] *Trusted Society of Human Rights Alliance v Attorney General & 2 others* (2012) eKLR.
[32] *The Centre for PIL and Another v The Union of India Writ Petition* (2010), Supreme Court of India.

the integrity threshold cannot be beyond reasonable doubt. The rationale behind this decision is that a higher burden would be too expensive to bar an individual whose integrity is already questionable.

In quoting American writer and theorist, Buckminster Fuller, "*On personal integrity hangs humanity's fate".* Dennis Thomas points out that in a democracy, officials act "for us" and "with others."[33] Courts seem amiss to this notion. With these considerations in mind, one can observe a narrow interpretation by the three courts in the first approach that ultimately renders Chapter 6 of the Constitution a lofty aspiration. For this reason, Kenyan courts should adopt a progressive integrity threshold that aims to safeguard public interest by viewing the matter from the wider perspective of institutional integrity, allowing greater intervention.

C. Dealing with Conflicts of interest

The essential pillars of the new Constitution on which rest all the structures of governance including the representation of the people, the executive, the judiciary, and devolution, are the Bill of Rights and Leadership and Integrity provisions.[34] They are sacrosanct to the spirit of the document and the 'large-scale social change' sought.[35] Nevertheless, there is need for a delicate balance between the need to protect one's fundamental rights and uphold the constitutional standard of integrity for the public's interest.

That notwithstanding, in *International Centre for Policy & Conflict & 5 others v Attorney General & 4 others,* the court found that despite the serious nature of the charges facing Kenyatta and Ruto at the International Criminal Court (ICC), under Article 50 of the Constitution, they were presumed innocent until the contrary was proved, a fundamental right that cannot be limited.[36] The court also asserted that the political rights of the respondents were at risk of being usurped if the Court was to apply the integrity Chapter. Their disqualification would limit The National

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[33] Dobel J, 'Personal Responsibility and Public Integrity' 86 *The Michigan Law Review Association* 6, 1988, 1460.
[34] Keynote address on 'Implementation of the new Constitution of Kenya: A new Era' to the Kenyan National Assembly with Odinga R on 29 September 2010.
[35] Klare K, 'Legal Culture and Transformative Constitutionalism' *South African Journal on Human Rights*, 1998, 150 https://doi.org/10.1080/02587203.1998.11834974 on 6 January 2021.
[36] Articles 25(c) and 50(2a), Constitution of Kenya (2010) see also, Otieno G, 'Integrity in Leadership? An assessment of Kenya's performance in enforcing constitutional values,' 23.

Alliance's right to field candidacy for the elections and as an implication, infringe on the people's democratic right to elect their representatives.[37]

The Court's justification in the given case aims at upholding the respondents' rights and thus the Bill of Rights provisions. However, in doing so, the Court limits the application of Chapter 6. Its attempts to achieve a rational decision result in turning a deaf ear to the Applicant's prayers and minimally trying to achieve a balance.

In *Trusted Society of Human Rights Alliance v The Attorney General and Others,* the court weighed the individual rights and the public interest and offered a different test. It held that Kenyans "*were singularly desirous of cleaning up our politics and governance structures by insisting on high standards of personal integrity among those seeking to govern us or hold public office*." Consequently, where the person is being vetted for purposes of entrusting him with the management of public affairs, the more persuasive interpretation would be that national values should override individual rights.[38] Justice Ngenye, in *Ferdinand Ndungu Waititu Babayao & 12 others v Republic,* was of the same view when she stated that in as much as a person accused is innocent until proven guilty, it would make a mockery to the letter and spirit of the Constitution to entrust them with a public duty.[39] A pragmatic balancing test Ken Hyle favors in resolving conflicts between two rights, and is well illustrated by the case of *Rowan v. United States Post Office Department.*

The case emanated from a 'direct conflict between the Free Speech Clause of the First Amendment and the penumbra right of privacy stemming from the First, Third, Fourth, and Fifth Amendments'. The court deployed a balancing methodology that weighed the individual costs and burdens placed on each party.[40] This aimed at determining which party would have to make the 'greatest sacrifice' if the Court ruled against them. In the Kenyan context, Courts upholding

[37] Okoth, 'The leadership and integrity chapter of the 2010 constitution of Kenya: the elusive threshold,' 285.
[38] Okoth, 'The leadership and integrity chapter of the 2010 constitution of Kenya: the elusive threshold,' 289.
[39] *Ferdinand Ndungu Waititu Babayao & 12 others v Republic* (2019) eKLR.
[40] Hyle K, 'When constitutional rights clash: Masterpiece cakeshop's potential legacy' ConLawNOW, 2018, 205-6.

individuals' rights of presumption of innocence and political rights leaves Chapter 6 ineffective. Hence, there is an unbalanced scale that courts must be cautious of.

Justice Mbogholi Msagha once said that "*limiting the people's rights would be inimical to the exercise of democratic right and freedom of its members."*[41] The people's sovereignty must therefore be upheld at all costs. It must be stressed that this methodology does not propose that courts favor an approach that trumps over individuals' rights. They, as the custodians of a progressing society, must exercise rationality at all costs by seeking a decision that ensures the resultant loss to the collective majority is utmost, minimal.

Furthermore, Courts asking the respondents to set aside their candidacies until their innocence is ascertained, would not bar or render a guilty verdict but halt their ambitions until all outstanding questions are determined.[42] TI-Kenya Executive Director Samuel Kimeu states that, "*A person rejected for leadership on account of lack of integrity is not penalised. He/she is simply by-passed in favour of the one who society feels espouses its values and ideals*."[43] This approach pays homage to Article 25(c) read with Article 50(2) (a) of the Constitution on non-derogable rights and treaties that Kenya is a State Party to, such as the Siracusa Principles on the Limitation and Derogation Provisions in the International Covenant on Civil and Political Rights (ICCPR).[44] This was an approach perhaps the Court in the Kenyatta and Ruto case was reluctant to adapt considering the momentum the respondents' candidacies had reared after the launch of their political party.[45]

In other instances, the doctrine of '*res sub judice'* has put restraints on courts ability to interpret Chapter 6. The doctrine is intended to stop the filing of a multiplicity of suits between the same parties or on the same subject matter to avoid abuse of the Court process and diminish the

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[41] Kiprono D, 'CLEAR LAWS CAN BOLSTER LEADERSHIP, INTEGRITY' Amnesty International Kenya, 4 January 2021 https://www.amnestykenya.org/clear-laws-can-bolster-leadership-integrity/ on 6 January 2021.
[42] Okoth, 'The leadership and integrity chapter of the 2010 constitution of Kenya: the elusive threshold,' 289.
[43] Kimeu S, Integrity: The ultimate standard for leadership Adili, 2012, 1 https://tikenya.org/wp-content/uploads/2017/08/2012_Adili136_Integrity.pdf on 1 February 2021.
[44] Article 67(d), *Siracusa Principles on the Limitation and Derogation Provisions in the International Covenant on Civil and Political Rights in the International Covenant on Civil and Political Rights*, 1 July 1984, UN Doc E/CN.4/1984/4.
[45] Otieno G, 'Integrity in Leadership? An assessment of Kenya's performance in enforcing constitutional values,' 24.

chances of courts issuing conflicting decisions over the same subject matter.[46] Section 6 of the Civil Procedure Code prescribes for this Common law doctrine.

In the case of *Kenya National Commission on Human Rights v Attorney General; Independent Electoral & Boundaries Commission & 16 others (interested parties),* the Kenya National Commission on Human Rights (KNCHR) sought an Advisory Opinion from the Supreme Court asking for guidance on its interpretation of Chapter 6 regarding elected or appointed persons in public offices. They contended that there is a lack of clarity that renders the Chapter ineffective and toothless. In the preliminary objections raised by the 17th interested party, Okiya Omtatah Okoiti averred that the reference was sub-judice given the two matters pending in the High Court of Kenya: Constitutional Petition No. 68 of 2017 and Constitutional Petition No. 142 of 2017. He argued that the Court's adjudication would infringe on his right to access the High Court as enshrined in Articles 25(c), 48, and 50(1) of the Constitution.[47] The Court upheld the preliminary objections by declaring that its jurisdiction was dispensed due to the doctrine of *re sub-judice* and that the matter was contrary to original jurisdiction confided on the Supreme Court.

The joint dissenting opinion of Justice Lenaola and Ibrahim sheds light on the dangerous precedent set by the Apex Court of the land. The judges stated that the constitutional petitions sought by Okiya Omtatah in the High Court could easily be distinguished from the reference. Judge Lenaola argued that the petitions were of "specific parties and raise substantive and specific issues in a specific context," while the reference sought an advisory opinion on 14 issues which were not on a specific dispute or parties.[48] The reference referred to the ineffectiveness of the entire Chapter and its adversity on the public's interest. Moreover, the erroneous decision by the Supreme Court is perplexing given the confusion the lower courts' decisions would add to the Chapter.

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[46] *Kenya National Commission on Human Rights v Attorney General; Independent Electoral & Boundaries Commission & 16 others (Interested Parties)* (2020) eKLR.
[47] *Kenya National Commission on Human Rights v Attorney General; Independent Electoral & Boundaries Commission & 16 others (Interested Parties)* (2020) eKLR.
[48] *Kenya National Commission on Human Rights v Attorney General; Independent Electoral & Boundaries Commission & 16 others (Interested Parties)* (2020) eKLR.

Section 6 of the Civil Procedure Code prescribes for a substantiality test to be used by courts in the application of the doctrine. The Court's attempt on the test was by remarking that the reference of the advisory opinion to Chapter 6 amounted to a matter of substance.[49] Considering the urgency of the matter for interested parties such as the Ethics and Anti-corruption Commission (EACC), the Director of Public Prosecution (DPP) and the Public, more attempt could have been made to distinguish the cases and pronounce a judgement with finality.

D. **A pattern of Judicial restraint inertia**

This part of the paper links judicial restraint with judicial deference as courts cannot exercise judicial deference without restraining their extensive powers under transformative constitutions.

John Mutakha Kangu asserts that among the terms that seek to define state power, separation of powers, checks and balances and constitutionalism are the basis of a constitution.[50] These are part of the attempt to curb abuse and misuse of the distributed power. Thus, judicial review must fall within the doctrines that guard the Constitution. Its critics argue that Courts lack the legitimacy and the capacity to make decisions that are better left to elected officials.[51] This is drawn from the notion that only democratic legitimate arms can exercise the will of the people and courts cannot intervene. However, with transformative constitutionalism, the traditional argument of judicial deference on the doctrine of separation of powers poses a challenge. It renders the judiciary limited in its pursuit of upholding the vision encapsulated in a transformative constitution. The perception that only the executive and the legislative hold democratic legitimate power weakens further when faced with a scenario where the legislative's powers are subdued by the executive. The judiciary would have to exercise their function according to the people's will. Hence, in the modernized constitutions, judicial restraint is shrunken.

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[49] *Kenya National Commission on Human Rights v Attorney General; Independent Electoral & Boundaries Commission & 16 others (Interested Parties)* (2020) eKLR.

[50] kangu J, 'we the people' as the sovereign in the Theory and Practice of governance' Moi University Law Journal, 2007, 211-212.

[51] Landau D, 'A Dynamic Theory of Judicial Role,' 1532.

Consequently, the Kenyan court's normative view of 'success' in adherence to the notion of separation of power is hindering the development of the law. There are two stratagems that avail courts' reluctance in asserting authority owing to their adherence to the normative view; (i) lack of appreciation for a substantive review in the executive's function of vetting and appointing public officials; and (ii) Inaction in matters concerning lack of mechanisms and procedures by the legislature to enact the Chapter.

*i. **Substantive review***

The prevailing jurisprudence is that courts can only exercise procedural review where the executive decisions regarding Chapter 6 are in question. This approach was adopted by the Court of Appeal in the case of *Mumo Matemu v Trusted Society of Human Rights Alliance & 5 others*. The thrust of the case was that the Appellant had been vetted by the executive which did not mention the unfitness or failure to meet the Constitutional threshold of integrity in Chapter 6 of the Constitution. The 1st respondent held that the manner of which the appellant was appointed failed to meet the constitutional threshold. They went further to avail that he was unfit and unsuitable for the position by submitting a great deal of evidence.[52]

In determining whether the appointment of Mumo Matemu was done per the Constitution and the law, the Appellate Court held that the High Court's conclusion of procedural impropriety on the appointing organs and unsuitability of Mumo Matemu was unsustainable.[53] Therefore, the court set precedent by stating that judicial review should solely be a review of the process of appointments; not a substantive one.

Looking at comparative jurisprudence, the South African courts adapted a progressive interpretation in *Democratic Alliance v President of South Africa and Others*. The court was similarly called upon to offer judgement on whether the appointment of Mr Simelane as the National Director of Public Prosecutions (NDPP) by the President of the Republic was

[52] *Mumo Matemu v Trusted Society of Human Rights Alliance & 5 others* (2013) eKLR.
[53] Tunoi K, 'Court of Appeal Overrules the Decision Setting Aside the Appointment of Mumo Matemu as Chairperson of Ethics and Anti-Corruption Commission' Kenya Law, 2013 http://kenyalaw.org/kenyalawblog/court-of-appeal-decision-setting-aside-the-appointment-of-mumo-matemu/ on 22 December 2020.

constitutionally valid.[54] In the first hearing, the court held that the appointment by the president was valid. However, upon appeal, the Court investigated the evidence and reversed the subordinate court's ruling due to the president's failure to take into consideration evidence questioning Mr. Simelane's credibility and integrity levels.

The Kenyan court compared to the South African court endorsed a judicial review methodology that rubberstamps the executive's decisions. This ruling contains a three-pronged attack worth considering. One, the court's adherence to a formalistic approach that limits the court's scrutiny into the functions of the other arms of government. Two, it presupposes that Chapter 6 unsubscribes to substantive review. And three, amiss to the similarity of substantive and rationality review.

- *Adherence to a Formalistic approach*

Justice Oliver Wendell Holmes made a concrete critique on legal formalism stating that legal rules are not deduced through formal legal logic but rather emerge from an active process of legal formalism. Yet *'most judges feel bound to resolve even the most difficult and controversial cases in a principled fashion'*.[55] This type of decision-making by courts derives from a habit of reflection termed as 'Legal culture'. Karl Klare defines it as "*professional sensibilities, habits of mind, and intellectual reflexes*". In reference to the South African 1996 constitution, he further states that the judicial legal culture should be '*examined and revised to reflect the transformative conception of adjudicative process and method envisaged by the doctrine of transformative constitutionalism'*.[56] Erin Dayl supports Klare's argument by asserting that with a transition from an oppressed form of rule to a more democratic one committed to social change, the legal culture becomes a hindrance to the transformation sought for.[57] Therefore, as the Constitution marks a transition, the legal culture should follow suit.

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[54] *Democratic Alliance v President of South Africa and Others* (2012), The Supreme Court of Appeal of South Africa.
[55] Seitz J, 'Judicial Review and the American Constitution' 17 *Federal Law Review* 1, 1987, 12.
[56] Kibet E and Fombad C, 'Transformative constitutionalism and the adjudication of constitutional rights in Africa,' *African Human Rights Law Journal,* 2017, 358 http://www.scielo.org.za/pdf/ahrlj/v17n2/02.pdf on 22 January 2021. See also Klare K, 'Legal Culture and Transformative Constitutionalism' *South African Journal on Human Rights*, 1998, 156 https://doi.org/10.1080/02587203.1998.11834974 on 22 January 2020.
[57] Dayl E, 'Transformative Justice: Charting a path to Reconciliation' 12 *International Legal Perspectives* 1 and 2, 2002, 111.

Kenya's post-colonial era was one marked with injustice and subversion of the judiciary's independence. The repealed constitution had envisioned a democratic state that provided for transparency and accountability in the exercise of governmental power.[58] However, it was clear from the constitutional amendments that Jomo Kenyatta and Moi's administrations heavily relied on the civil service bureaucracy and provincial administration officers, and integrity or accountability to the people was of no significance to their regimes.[59] Under the concept of transformative constitutionalism, judicial action would be permissible if it helped to move politics and society closer to the constitutional ideal and impermissible if it either moved politics and society further away from the constitutional ideal or was unrelated to that goal.[60] Therefore, the judiciary must assume a more assertive position than in ordinary traditional contexts.[61] Courts' adjudication of Chapter 6 should convey this progression.

Nevertheless, the Court of Appeal in Mumo Matemu cohered with the formalistic approach by issuing a ruling that paid homage to the 'era of imperial presidency'. Its decision implied that on the one hand, the executive can exercise its powers in conformity to the narrow procedural review and on the other, have broad powers that undermine the values and principles of the Constitution, a notion that would erode Chapter 6's transformative vision.

- *A substantive review is a pre-requisite for the Leadership and Integrity provisional clauses*

The Appellate Court rejection of substantive review is premised on the need to maintain separation of power through judicial deference. However, this justification is rather broad and shallow. It prevents meritorious appeal of questionable appointments by the Executive.

Justice Dickson developed what is termed as the 'patent unreasonable' test in CUPE, *local 963 v New Brunswick Liquor Corp* case. This approach proposes that courts should determine if the executive's decisions are reasonable in exercising their mandate.[62] It is highly favored by

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[58] Chapter 8, *Constitution of Kenya* (1963).
[59] Wanyama L, 'KENYA – The imperilled presidency' Democracy In Africa, 29 May 2019 http://democracyinafrica.org/kenya-imperilled-presidency/ on 5 January 2021.
[60] Landau D, 'A Dynamic Theory of Judicial Role,' 1532.
[61] Kibet E and Fombad C, 'Transformative constitutionalism and the adjudication of constitutional rights in Africa,' 356.
[62] *C.U.P.E. v. N.B. Liquor Corporation* (1979), Supreme Court of Canada.

Canadian courts and can aid Kenyan courts in understanding the need for substantive review regarding Chapter 6. In the subsequent years, the test has been modified by various scholars and judicial authorities. The type of inquiry advocated by Justice Sopinka asserts that judicial deference does not need courts refraining from a detailed examination of administrative decisions.[63] The critical element in this approach is that courts must justify their warranted action, however, this is not to mean substitute the given decision for its own. Therefore, what is reasonable and how are Kenyan courts to determine it?

The evidence presented to the Court by the Human Rights Alliance indicated that the appointing authorities gave lip service, or no consideration at all, to the question of Mumo Matemu's integrity or suitability to hold the office.[64] Moreover, the sheer amount of evidence brought forth should have prompted the appointing body to scrutinize it for its merits. Hence, according to Sopinka. J and the Supreme Court in the Democratic Alliance, the executive's failure to consider all withstanding questions on Mumo Matemu, paved the way for the Court to determine whether the appointment was null and avoid.

It is noteworthy that the appointment of Public officers and whether they meet the integrity threshold is unambiguous. The courts' do not have to transform themselves to the executive to recognize that a person failed to meet the requirements. The test simply requires for one to determine if the evidence shows the appointee's participation in the claims alleged. If the entrusted bodies with the appointment of Public officers fail to exercise its mandate, who is to counteract its effect on the institutions? Consequently, the Court of Appeal's myopic attitude to Chapter 6 is worrying.

- *The nuanced relationship between rationality and substantive review*

The rationality test is an objective standard that entails what decision a reasonable person would have arrived at if they applied their mind to the question. The test may thus determine whether

[63] Taylor C, 'Curial Deference and Judicial Review' 13 *Advocates' Quarterly* 1, 1991, 80-81.
[64] Otieno G, 'Integrity in Leadership? An assessment of Kenya's performance in enforcing constitutional values,' 20.

the decision was 'rationally related to the purpose for which the power was given'.[65] In the first hearing of the Mumo Matemu case, the court used the test to invalidate the appointment due to many "unresolved issues".[66] Therefore, the court had to weight the substance of the matter to determine if the decision was rational. The only way to limit its intrusion into the substantive review is for courts to constrict the test. The Appellate Court endorsed this approach by adopting a narrow interpretation of the rationality test in their means-end analysis; simply connecting the legislative purpose and the means used to appoint Mumo Matemu.[67]

When one attempts to differentiate the narrow rationality test and procedural review, they cannot help but see the alikeness in their application and conclusion. The court's attempt to de-link the rationality test to substantive review leaves the former stripped-down. Thus, its usage is merely rhetorical without any real commitment to its purpose.

Once again, the Kenyan courts are menacing Chapter 6 of the Constitution and its progressive nature. Their reluctancy to perform substantive review, by adhering to a formalistic approach of judicial deference, ousts the Leadership and Integrity Chapter and its purpose from a position of seminal importance.

ii. Lack of mechanism or procedure for dealing with issues of integrity

Under article 165(3)(d) of the Constitution, the High Court is given jurisdiction to hear all matters relating to the interpretation of the Constitution by other arms of government.[68] However, Courts adjudication on whether there exists a mechanism or procedure for dealing with integrity issues is in a state of flux. There is a tendency by courts to avoid constitutional issues by terming them "statutory issues". This is evident in *Kenya National Commission on Human Rights v Attorney General, Independent Electoral & Boundaries Commission & 16 others (interested parties), Commission for the Implementation of the Constitution v Parliament of Kenya & 5 others*,

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[65] Pillay A, 'Reviewing Reasonableness: An Appropriate Standard for Evaluating State Action and Inaction?' *The South African Law Journal*, 2005, 423 https://open.uct.ac.za/bitstream/item/17570/article_law_2005_pillay_a.pdf?sequence=1 on 15 January 2021.
[66] *Trusted Society of Human Rights Alliance v AG &5 Others* (2012) eKLR.
[67] *Mumo Matemu v Trusted Society of Human Rights Alliance & 5 others* (2013) eKLR.
[68] Article 165, *Constitution of Kenya* (2010).

International Centre for Policy & Conflict & 5 others v Attorney General & 4 others and *Michael Wachira Nderitu v Mary Wambui Munene & 2 others.*

The prevailing pattern shows that courts are de-linking statutory issues with constitution ones while it is pre-eminent that statutes are weighing down Chapter 6. The decision in *Commission for the Implementation of the Constitution v Parliament of Kenya & 5 others* is particularly intriguing because the Court is outrightly asked to adjudicate on the issue of lack of a procedure or mechanism to enforce Chapter 6. Commission for Implementation of the Constitution (CIC) filed a petition challenging the constitutionality of the Leadership and Integrity Act after its implementation. It contended that the legislation was weak, and it did not provide for mechanisms and procedures for the effective implementation of Chapter 6. The Constitution envisaged that one of the mechanisms of ensuring compliance with the Chapter was to ensure that leaders who do not comply with its provisions are either barred from holding public office, or if already holding public office, are removed from such office, and therefore the Act has failed to recognize such enforcement mechanisms.[69]

The Ethics and Anti-Corruption Commission (EACC) joined the interested parties urging courts to issue orders and direction to enable the Act to meet the Constitutional threshold in Article 80. It faulted the Act for lack of tools in enforcing Chapter 6 and for undermining their mandate.[70] In dismissing the case, the Court held it cannot delve into matters concerning Acts of Parliament unless the Constitution is contravened.

This restraint-based argument seems difficult to justify when Chapter 6 is in question. It assumes that the legislative body is working vehemently to implement the Chapter. However, that is not the case. The Acts established under the Chapter by the legislative have been highly watered-down. This is an issue echoed by Commissions such as CIC, EACC, IEBC in various cases where they have joined as interested parties. The Building bridges initiative (BBI) report has acknowledged the need to amend Article 80 of the Leadership and Integrity Act to provide for a

[69] *Commission for the Implementation of the Constitution v Parliament of Kenya & 5 others* (2013) eKLR.
[70] *Commission for the Implementation of the Constitution v Parliament of Kenya & 5 others* (2013) eKLR.

proper mechanism.[71] The Katiba Institute acting as amicus curiae in the CIC case submitted that the leadership and Integrity Act was invalid as it ignored Kenyans views on effective enforcement, defeating the essence of public participation.[72] Moreover, The African Development Bank Group 2019 paper contends that legal frameworks such as The Ethics and Anti-Corruption Commission Act and The Leadership and Integrity Act, are highly diluted.[73]

Their claims are grounded. The EACC Act section 62(6) undermines the values of the Constitution by implicitly protecting leaders and officers from being ousted out of office through graft prosecution and fails to provide for the consequences of failure to comply with the said requirements. The Leadership and Integrity Act is silent on penalties for those who contravene the provision, the 'self-declaration form' is rather vague and does not accommodate for scrutiny by electoral bodies such as IEBC on the contesting officer, it also denies EACC prosecutorial powers rendering it ineffective by vesting them to the DPP, contrast to unshared constitutional powers in Article 80 of the Constitution. The Code of Conduct has poor observance and enforcement mechanisms.[74]

This assumption made by courts that there exists confined boundaries between the legislative and the judiciary mandates should not extend to a legislative that is malfunctioning or undermining the Leadership and Integrity provisional clauses.[75] In the traditional formulation by legal theorists such as James Bradley Thayer claim that a court should not substitute its judgment for that of nationally elected officials unless it believes that they are not "reasonable".[76] Justice Dixon in *Water Conservation and Irrigation Commission (NSV) v Browning* enlightens Thayer's point by stating that Legislative discretion is unconfined, "*except in so far as the subject matter and the scope and purpose of the statutory enactment may enable the Court to pronounce*

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[71] Report of the Steering Committee on the Implementation of Recommendations of the Building Bridges to A United Kenya, '*Building Bridges to a United Kenya: from a nation of blood ties to a nation of ideals*,' 2020, 144.
[72] *Commission for the Implementation of the Constitution v Parliament of Kenya & 5 others* (2013) eKLR.
[73] African Development Bank Group, *Bank Group Country Strategy Paper 2019-2023 and Country Portfolio Performance Review*, 2019, XLVIII (48).
[74] Office of the Attorney General and Department of Justice, National Ethics and Anti-Corruption Policy Sessional paper no. 2, 2018, 8.
[75] Landau D, 'A Dynamic Theory of Judicial Role,' 1536.
[76] Landau D, 'A Dynamic Theory of Judicial Role,' 1532.

given reasons to be extraneous to any objects the legislature could have had in view".[77] It should be stressed that this legal rule should not be so generalized that it loses its real purpose or predictable application.

Hence, courts justification of why intrusion into the other arms territory is warranted should be reasonable. This scope would make it a requirement that binds authorized bodies and commissions to take into consideration all matters regarding the integrity of an appointee.

One would think that a conflict between the Acts and the Constitution would invite courts to uphold the supremacy of the Constitution by invalidating any Act that is inconsistent with it. However, courts, more often than not, are finding comfort in ridding themselves of statutory issues.

III. CONCLUSION

Kenyans by dint of Chapter 6 of the Constitution have heeded State and Public officers' integrity and competence to serve them. Notwithstanding, the provisions remain dormant. Numerous cases reveal that courts justifications are rather weak and moot questions. There is a lack of urgency to implement Chapter 6, explicitly resulting to inconsistency, restrictiveness, and incoherency. When matters pass the first stage of determination on whether there exists jurisdiction, courts find other hurdles they 'cannot' leap over.

The commitment the judges owe to the chapter is "*anchored on a rampant past, developed, and refined in the present and carried over into the future*".[78] The judiciary being 'the greatest beneficiary of the changing political philosophy' must play this prominent role in its effectiveness.[79] Therefore, if Chapter 6 of the Constitution is to be effective, it must 'bite' often or hard. Outstandingly, this is yet to be realized.

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[77] *Water Conservation and Irrigation Commission (NSW) v Browning* (1947), High Court of Australia. See also, Bateman W, 'The Constitution and the substantive principles of Judicial Review: The full scope of the entrenched Minimum Provision of Judicial Review' 39 *Federal Law Review* 3, 2011, 480-81.
[78] Tadeusz K, 'A Good Constitution" and the Habits of Heart' VerfBlog, 2017, 2.
[79] Kibet E and Fombad C, 'Transformative constitutionalism and the adjudication of constitutional rights in Africa,' 356. See also, Ojwang JB, '*Ascendant Judiciary in East Africa: Reconfiguring the Balance of Power in a Democratizing Constitutional order'* Strathmore University Press, Nairobi, 2013.